

Where There Isn't a Will

Laws governing inheritance of women's assets when they pass away without a will are filled with arcane assumptions, often relying on biases that have not kept pace with the changes in Indian society | 127

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► **CHANGES IN SOCIETY OFTEN** precede those in law by a good few years, if not decades. Women, particularly, continue to feel the full weight of centuries-old cultural mores that inform these laws. This appears to be most true in laws governing inheritance.

Consider this landmark case. In 1955, Narayani Devi married Dindyal Sharma and lived in Sharma's house with his parents. Sharma passed away within three months of the marriage, and Devi was forced out of her matrimonial home immediately after.

She returned to her parents' home, got educated, and found a job. She started bank accounts and had a sizeable sum in her provident fund account. In 1996, she passed away intestate, i.e. without a will, leaving behind the assets she had acquired in her lifetime.

Ramkishori, Devi's mother, applied for a succession certificate. So, too, did Narayani's in-laws, seeking not just succession certificates but also ownership rights over her acquired properties. A dispute arose, stemming from the fact that Devi's in-laws never made any financial contribution